State of West Virginia Office of Technology Policy
CIO Review Approval
Issued by the CIO

Policy No: CIO-19-001	Issue Date: 08/01/2019	Revised Date: 08/01/2022

1.0 PURPOSE

This policy establishes a framework for all technology procurement requests that require CIO Approval.

W. Va. Code § 5A-6-1, *et seq.,* provides that the Chief Information Officer (CIO) may evaluate and make recommendations on the design and suitability of Information Technology (IT) equipment and related services, and may review and make recommendations on the purchase, lease or acquisition of information equipment and contracts for related services, including temporary IT staffing by all state spending units.

2.0 SCOPE

For technology procurements with aggregate spend over $250,000, please reference Appendix A.

This policy is applicable to all state agencies, with the exception of those listed in W. Va. Code §5A-6-8, "Exemptions" and the above referenced Appendix A.

The State's Procurement Officers are expected to be familiar with and to comply with this policy.

3.0 POLICY

3.1 Pre-Approval for Technology Procurements Below $5,000 Threshold

3.1.1 To enable additional flexibility and speed in the procurement process, a blanket approval list (Appendix B) is provided for specific software and hardware when below the $5,000 threshold.

3.1.2 Agencies must submit a Privacy Impact Assessment (PIA) prior to the procurement and/or use of removable media storage devices. Contact your Agency's Privacy Officer or visit privacy.wv.gov for more information.

3.2 Expedited Review Request Process

3.2.1 The intent of the Expedited Review is to provide Agencies with a mechanism to indicate a time-sensitive circumstance as the result of a business need.

3.2.2 The following review types are NOT authorized for expedited review.

3.2.2.1 Request for Proposals (RFPs) at the concept stage

3.2.2.2 Request for Proposals (RFPs) at the release stage

3.2.2.3 Contract Renewals

3.2.3 Expedited Review requests must be approved by the requesting Agency Head or designated approver. An email chain is an acceptable format for this approval.

3.2.4 An Expedited Review request must be sent with "Important: Expedite Request" in the subject line of the email. Include detailed business justification in accordance with the criteria outlined below:

3.2.4.1 Funding Source Impact

3.2.4.1.1 Detailed explanation of the funding source impact to the agency.
3.2.4.1.2 Fund source type (General Revenue, Special Revenue, Grants, etc.)
3.2.4.1.3 If funds are expiring, provide expiration date(s).
3.2.4.1.4 Additional details, as necessary.

3.2.4.2 Significant Operational Impact
3.2.4.2.1 Detailed explanation of the operational impact to the agency.
3.2.4.2.2 Explanation of the urgency and scope of anticipated or actual impact.
3.2.4.2.3 Timeline of existing or anticipated operational impact.
3.2.4.2.4 Additional details, as necessary.

Depending on the complexity of a procurement, the WVOT reserves the right to request additional information. These requests must be submitted to Consulting.Services@wv.gov

3.3 Requests for Proposals, Quotations, and Information (RFP, RFQ, RFI) and Other non-Expedited Requests

3.3.1 When requesting CIO Approval, an Agency must provide the Office of Technology with all the relevant details required. At a minimum, that must include the following:

3.3.1.1 Description (What do you need?)

3.3.1.2 Justification (Why do you need it?)

3.3.1.3 Estimated Cost (How much it will cost?)

3.3.1.4 Purchase Method: Contract Change Order, Contract Renewal, Cooperative Agreement, Direct Award, Emergency Purchase, P Card Purchase, Release Order (ADO/CDO), RFI, RFP Award, RFP Concept, RFP Release, RFQ Award, RFQ Release, Statewide Contract Waiver, Telecommunication Invoicing/Payment Waiver

3.3.1.5 Will it be replacing something already in place or will it be a new addition?

3.3.1.6 Specification Documents (if applicable)

3.3.1.7 Where will equipment be located? (if applicable)

3.3.1.8 Oasis number (if applicable)

Depending on the complexity of a procurement, the WVOT reserves the right to request additional information. These requests must be submitted to Consulting.Services@wv.gov

3.3.2 **Request for Proposals** require three (3) CIO Approvals: concept, release, and award stages.

3.3.2.1 RFP Concept Stage Review. WVOT is reviewing the request to ensure alignment with the State's strategic initiatives. A determination memo is sent via email to the Agency point of contact.

3.3.2.2 RFP Release Stage Review. WVOT is reviewing the request to ensure the solicitation aligns with the concept and enterprise architecture standards. The agency must submit the review with estimated costs. A determination memo is sent via email to the Agency point of contact.

3.3.2.3 RFP Award Stage Review. WVOT is reviewing the request to validate strategic alignment, enterprise architecture standards adherence and cost. The Agency must submit all award documentation for review. A determination memo is sent via email to the agency point of contact.

3.3.3 **Request for Quotations** (RFQ) require CIO Approval at the release, and sometimes, award stages.

3.3.3.1 RFQ Release Stage Review. WVOT is reviewing the request to ensure the solicitation aligns with the concept and enterprise architecture standards. The agency must submit the review with estimated costs. A determination memo is sent via email to the agency point of contact.

3.3.3.2 RFQ Award Stage Review. WVOT is reviewing the request to validate strategic alignment, enterprise architecture standards adherence and cost. The agency must submit all award documentation for review. A determination memo is sent via email to the agency point of contact. This approval is only required for purchases of $50,000 or more.

3.3.4 Request for Information (RFI) require CIO Approval at the concept stage.

3.3.4.1 Agency must submit an overview and justification of the desired RFI. WVOT is reviewing the request to ensure alignment with the State's strategic initiatives. A determination memo is sent via email to the agency point of contact.

3.3.5 Contract Renewals

3.3.5.1 WVOT is reviewing the request to ensure alignment with the State's strategic initiatives and cost. A determination memo is sent via email to the agency point of contact.

3.3.5.2 An Agency may request all subsequent contract renewals be approved in advance. WVOT reserves the right to retract an approval should it be deemed in the best interest of the State.

3.3.6 Minor Contract Reassignments

3.3.6.1 CIO Approval is required if the contract reassignment alters the technical specifications of the contract. CIO Approval is not required for contract reassignments necessitated by a name and/or other administrative change, such as funding or address changes.

3.3.7 Open-End Contracts

3.3.7.1 Technology Statewide Contracts

3.3.7.1.1 CIO Approval may be required for some Statewide Contracts. For ordering instructions and attachments, visit:

https://www.state.wv.us/admin/purchase/swc/default.html.

3.3.7.1.2 The CIO does NOT have authority to grant waivers from the use of a statewide contract; however, CIO Approval is required for any resulting procurement where Central Purchasing has granted exemption from using a statewide contract.

3.3.7.1.3 The CIO does hold the authority to grant waivers from the telecommunications ordering and billing services provided under WV code §5A-7-1.

3.3.7.1.4 Any entity exempted from CIO Review by Code is not required to submit Statewide Contract orders to the WVOT.

3.3.7.2 Master Agreements (Open-End Contracts)

3.3.7.2.1 CIO Approval is inherent for every delivery order released from master agreement (CMA, AMA) contracts, unless otherwise specified by the original approval memo.

3.8 Waiver Request from CIO Approval

3.8.1.1 An Agency may submit a waiver request to the Office of Technology for purchases for review and consideration. This provision is specifically applicable to those entities that are not connected to the State's network and are not exempted by Code.

3.9 Internal Delegation Memo

The Internal Office of Technology delegation is outlined in Appendix C.

3.10 SaaS Cloud Addendum Overview

Information about the Cloud Addendum is outlined in Appendix D.

4 RELEVANT MATERIALS/DOCUMENTS

This policy is consistent with the following federal and state authorities:

- WV Code § 5A-6-1
- WVOT Policies Issued by the Chief Information Officer (CIO), https://sites.google.com/wv.gov/othub/nonav/policies/cto-19-001

5 ENFORCEMENT

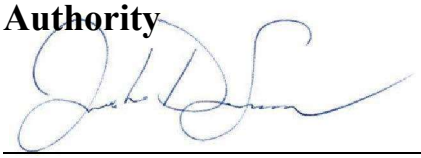
Any employee found to have violated this policy may be subject to disciplinary action up to and including dismissal. Disciplinary action will be administered by the employing agency and may be based upon recommendations of the WVOT and the **West Virginia Division of Personnel**. Please review the **WVOT Policy and Procedure Policy #1000** to review additional provisions concerning enforcement and policy authority.

Audits will be completed by the Office of Technology during the Contract Renewal process to make recommendations for changes and efficiencies. Audits will also be conducted by the Office of Technology on purchasing card purchases relating to Technology procurements.

6 Change Log History

- July 1, 2019 –
  - Document Created.
- December 1, 2020 –
  - Changed email address from consultingservices@wv.gov to Consulting.Services@wv.gov
  - Added Section 3.9
  - Added Kofax to the Nuance version in Appendix B
  - Added Appendix D
- March 10, 2022 -
  - Change reference to CTO to CIO
  - Change reference to Chief Technology Officer to Chief Information Officer
  - Change reference to DIGICOP statewide contract to DIGCOP statewide contract
  - Change section 3.1.3 to include designated approver
  - Removed Accelerated Review Section
  - Added questions to send to CIO Review team when submitted requests to Relevant Materials/Documents section.
- Jul 15, 2022
  - Restructured formatting and sentence structure throughout the document.

7 Authority



Joshua D. Spence
Chief Information Officer
West Virginia Office of Technology

Jim Justice

Governor of West Virginia

MEMORANDUM

TO: Governor's Cabinet Secretaries
Executive Branch Agency Heads

FROM: Ann Urling, Deputy Chief of Staff AU

DATE: December 4, 2018

RE: Strategic Review of Technology Procurements

As a follow-up to Governor Justice's announcement last week that Josh Spence, one of the leading cybersecurity experts in the nation, is now leading our Office of Technology as the Chief Technology Officer, I wanted to let you know that we are going to need your assistance as we work to build a **much more secure** statewide network which will include a cybersecurity plan to be created for and utilized by all of state government.

In recognition of the significant cyber threat facing state government technology & data, the need to improve cost-efficiencies, and enhance the value of technology investments, effective immediately, the **Office of Technology will be conducting a strategic review of all technology procurements.**

This review **will be applicable to all state entities** and incorporated into the existing Chief Technology Officer (CTO) review process. **All agencies will need to route technology procurements, meeting the review scope to Consulting.Services@wv.gov.**

Processing of the transaction will not proceed until the review has been completed and the transaction approved. This review will include the following scope and evaluation criteria.

Review Scope: All technology procurements, change orders, and release orders from statewide contracts with an estimated aggregate cost of $250,000 or greater.

Evaluation Criteria: Does the procurement's purpose directly relate to the implementation, maintenance, or enhancement of:

1. Cybersecurity technology or services
2. Information technology (IT) data centers
3. IT network infrastructure
4. IT server & data storage technology
5. IT enterprise technology or services

Emergency Situation: If you have some type of urgent/time sensitive technology-related purchase/renewal, the CTO will work to assist you as we work to incorporate this into our long-term plan for the state.

We appreciate your cooperation and understanding as we implement this new process to assess our system security vulnerabilities and create a secure environment that is essential to protect vital information within our State.

The following organizations are exempted from this policy.

- Higher Education
- Department of Education

Please let me know if you have any questions or concerns.

APPENDIX B: Under $5,000 Purchases

Policy No: CIO-19-001

Purpose: The following hardware and software hold blanket pre-approval when procuring under the $5,000 dollar threshold.

Approved Software Purchases under $5,000:

The following software is approved for the specific software.

Notice: Approved software must be a currently supported version. All unsupported (legacy) software requires CIO approval.

- Adobe PDF Professional DC Cloud Version
- Kofax Nuance Power PDF Standard
- Kofax Nuance Power PDF Advanced

Approved Hardware Purchases under $5,000:

The following hardware is approved for the specific items listed.

- Desktop "side by" printers
- Scanners
- Projectors
- Fax Machines
- Input/Output Peripherals Devices (Component adapters, mice, keyboards, headsets)
- WVOT issued Bill of Materials (BOM) within 90 days of issuance.

APPENDIX C: Office of Technology Internal Approval Memo

Policy No: CIO-19-001

STATE OF WEST VIRGINIA
DEPARTMENT OF ADMINISTRATION
OFFICE OF TECHNOLOGY
State Capitol
Charleston, West Virginia 25305

Mark D. Scott
Cabinet Secretary

Joshua D. Spence
Chief Information Officer

TO: West Virginia Office of Technology Directors

FROM: Joshua Spence, Chief Information Officer
West Virginia Office of Technology (WVOT)

DATE: August 1, 2022

SUBJECT: CIO Approval for West Virginia Office of Technology Purchases

Beginning August 1, 2022, a Director's submission of a Purchase Request Form (PR1) to the Administrative Section will constitute his/her approval based on the technical merits. A separate CIO Approval email or memo is no longer required for the Office of Technology's purchases. This change will help to streamline internal purchases by eliminating duplicative reviews.

APPENDIX D: WV Cloud SaaS Procurement Addendum Overview

Policy No: CIO-19-001

Purpose and Scope

Protection of state-owned data, including citizens' personally identifiable information (PII) or confidential information, shall be an integral part of the business activities of the service provider to ensure there is no inappropriate or unauthorized use or access of the state's data at any time. To this end, the Software as a Service (Cloud) addendum outlines the obligations of the service provider to protect the state's data affected by the service. The addendum is required for any project in which state-owned data will be stored on or accessible by an application or cloud infrastructure that is owned, maintained, or managed by the service provider.

Definitions

"Service Provider" means the contractor and its employees, subcontractors, agents and affiliates who are providing the services agreed to under the contract.

"Software-as-a-Service" (SaaS) means the capability provided to the consumer to use the provider's applications running on a cloud infrastructure. The applications are accessible from various client devices through a thin-client interface such as a Web browser (e.g., Web-based email) or a program interface. The consumer does not manage or control the underlying cloud infrastructure including network, servers, operating systems, storage or even individual application capabilities, with the possible exception of limited user-specific application configuration settings.

"State-owned Data" means all data created or in any way originating with the state, its departments, agencies, boards or commissions, and all data that is the output of computer processing or other electronic manipulation of any data that was created by or in any way originated with the state, whether such data or output is stored on the state's hardware, the service provider's hardware or exists in any system owned, maintained or otherwise controlled by the state or by the service provider.

Policy

When requesting CIO Review, agencies must include the SaaS (Cloud) addendum with the specifications for any projects seeking software as a service, or projects in which state-owned data will be stored in a cloud.

The SaaS is available on the OT Hub: (https://sites.google.com/wv.gov/othub/nonav/policies/cloud-saas) or on the Purchasing Division's website under "Form" (http://www.state.wv.us/admin/purchase/Documents/WVCloud-SaaSProcurementAddendum.pdf)

If the SaaS addendum is not necessary, WVOT will notify the requesting agency. This ensures that the agency will submit the SaaS addendum with the specifications when publishing solicitations when it is

applicable. If the SaaS addendum is required, it MUST be attached to the solicitation when submitted to the Purchasing Division.

The Purchasing Division will not allow the solicitation to be published if the CIO Review memo indicates the SaaS addendum is required and it is not attached to the solicitation.